



Njeru, Nyaga & Co. Advocates LLP v Machua & 2 others (Environment and Land Case Application E177 of 2023) [2025] KEELC 6374 (KLR) (30 January 2025) (Ruling)

Neutral citation: [2025] KEELC 6374 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT NAIROBI
ENVIRONMENT AND LAND CASE APPLICATION E177 OF 2023**

**J OMANGE, J
JANUARY 30, 2025**

BETWEEN

NJERU, NYAGA & CO. ADVOCATES LLP ADVOCATE

AND

GRACE WAIRIMU MACHUA 1ST CLIENT

MUCHUGIA MBUGUA 2ND CLIENT

WAMBUI MACHUA 3RD CLIENT

RULING

There are two application pending in this matter. In the application dated 6th May, 2024 the Client/ Applicant prays that the taxation orders made on 22nd April, 2024 be referred back to the taxation master for reconsideration on three aspects; firstly on the parties against whom the bill is taxed; secondly, for recalculation of amount due after considering the amount of Kshs 599,400 paid to the advocates previously and lastly items 1, 2 and 56-64 of the bill.

1. In the affidavit in support of the application the 2nd and 3rd Client/ Applicant depone that they had not been enjoined to the suit at the time the advocate was on record hence should not be enjoined on the issue of costs. The 2nd and 3rd Client further fault the taxing master for failing to consider that they had remitted an amount of Kshs 599,400. They insist that this should have been offset in the final taxed amount. Lastly they challenge the awards under item 1, 2, 56-64.
2. While this application was pending the advocate too filed an application. In the application dated 27th November, 2024 the Advocate/ Applicant prays for entry of Judgement against the Respondent for the sum of Kshs 961,556 being certified costs due. The application is brought on the grounds that the Applicants bill of costs was taxed on 22nd April, 2023 and an amount of Kshs 961,556 awarded to the Applicant. A certificate of taxation was thereafter issued and is attached to the affidavit in support of the application.



3. The court directed that the applications be canvassed by way of written submissions. Counsel for client/ applicant submitted that the taxing master erred by failing to consider the amount of Kshs 599,400 which had been paid by the client. Counsel also submitted that the Taxing Master had failed to consider that the Applicant/ Clients were not clients of the Respondent/ Advocate. Counsel argued that this amounted to an error of principle. Lastly counsel referred the court to the case of CA 345 of 2019, Francis Chege Maina versus JM Njenga & Co Advocates in which the Court of Appeal addressed a similar issue.
4. Counsel for the applicant/ advocate submitted that the grounds on the client advocate/ application are merely argumentative and intended to delay the matter. Counsel urged the court to dismiss the application.
5. The court distills the following issues for determination;i. Whether the 2nd and 3rd client/ applicants were wrongly enjoinedii. Whether the Taxing master correctly taxed item 1,2, and 54-64iii. Whether the amount paid as deposit should be offset from the taxed amount
6. On the issue of whether the 2nd and 3rd Client were wrongly enjoined, the answer is found in the email which is attached to the advocates affidavit. In the email dated 29th October, 2021, the 2nd and 3rd Client instruct the advocate to transfer their files to another advocate. It is not expected that one would withdraw instructions which they had not issued in the first place, I therefore find this argument has no merit.
7. On the second issue, the clients submit that the items were not correctly taxed. It is difficult to understand what the clients complaint on the taxation of item 1 is considering that the taxing master taxed the item at 200,000 as they had asked. This also applies to item 2. Item 54 to 64 is the court filing fees. I find no reason for this court to interfere with the Taxing Masters taxation of the items complained of.
8. On the last issue of whether the amount that had been paid as deposit should be included in the final tally, I find that while it is true that the bill of costs should be taxed to cover the entire work done, it is only just that after the taxed amount is assessed, the taxation master should credit any amount that had been given as a deposit.
9. In the circumstances the taxed amount is upheld at Ksh 961,556 but application succeeds partially. The file is referred back to the taxation master who is to recalculate the amount payable taking into account any deposit that had earlier been made for fees towards the same case. It shall be the responsibility of the clients to provide evidence of this payment. The taxation master is then to issue a final certificate. In view of these findings the application dated 27th November, 2024 is premature and is struck out with no orders as to costs. Each party is to bear their own costs for the application.

JUDGMENT SIGNED, DATED AND DELIVERED VIA MICROSOFT TEAMS THIS 30TH DAY OF JANUARY 2025

JUDY OMANGE

JUDGE

In the presence of:

Ms Kimaru for Applicant

Ms Kirui for Njeru Nyaga

Court Assistant Meryline

